

1) Queer AI for the Digital Child — Africa-first evidence for action

“Children generally, and LGBTQ+ identifying children specifically, face increasing infringements of their privacy rights and rights to digital anonymity, dignity, equality, and non-discrimination. For example, emerging digital protection legislation aimed at protecting children, may require registering a SIM to a biometric ID. This digital link and identification can be used to capture, flag, and analyze digital content such as private chat logs, where the metadata can then point straight back to the child. In places where being LGBTQ+ is criminalized and/or considered socially unacceptable, a design choice by legislators and policymakers becomes a significant safety risk and point of rights violations for children. Our paper explores where these risks cluster across Africa—and how a child-centric, human rights-based approach to data protections can protect the rights of vulnerable LGBTQ+ identifying children and turn treaty text into maps and actions.”

2) Why Now (Problem & Stakes)

“11 years have passed since the adoption of African Declaration on Internet Rights and Freedoms. Since then, the African Union has published *The Digital Transformation Strategy For Africa* and the *Continental Artificial Intelligence Strategy*. These policy documents broadly support protecting human rights; however, technology is advancing faster than protections can be instituted for children and LGBTQ+ identifying individuals. In addition, reporting on progress and rights violations is scattered across treaty bodies, government agencies, international organizations, all using various formats. Our data shows risks cluster where three conditions meet: criminalization of LGBTQ+ people, biometric SIM/ID systems, and a lack of child online protection rules. The goal is to move from long texts and fragmented updates to truly usable maps—so human rights defenders, civil society organizations, governments, regulators, and human rights organizations can prioritize the highest-impact changes first.”

3) Framework & Sources (Legal + Computational)

“Our analysis is grounded in international human rights, treaty-body and regional human rights policy frameworks, including: UPR/HRC, CRC, UNICEF, ACHPR, and ACERWC. Our data collecting program first developed to analyze progress on combatting sex and gender-based violence in Africa pursuant to the UPR was re-tooled to normalize and code relevant online sources and records into indicators — so each country gets a lens on SOGI/LGBT legal status for children, SIM/ID policy, child-digital hooks, data-protection, and AI policy maturity. Later this month, Little Rainbow Rights and GRIMdata is launching its Africa-first dataset that pairs legal meaning with machine-readable structure for rapid analysis. We use it to spot immediate-action clusters—like No COP + biometricSIM or CriminalizedLGBTQ + biometricSIM—and to publish country cards with verifiable sources. Next steps: dashboards and regional verification sprints so local experts can correct, confirm, and act.”

4) Child Digital Access → Opportunities & Harms

“Access is multidimensional: devices and connectivity, shared vs. personal accounts, and who actually controls the account. It creates capabilities—literacy, learning, identity

exploration—but it also increases exposure to privacy rights violations and discrimination based on content, contact, conduct, and contract risks. Datafication—persistent profiling, biometric SIM ties, cross-platform tracking—adds a layer of vulnerability. When access expands without safeguards, harms scale, especially for LGBTQ+ identifying children who may rely on the internet for support and safety.

Children are also increasingly inside digital labor chains—labeling, moderation, gig micro-work, esports streaming, and in-game economies. The work is remote and invisible, pay is opaque, and platform algorithms allocate tasks with little oversight. In AI supply chains, kids may help train the very systems that later police their content. Our message: child online protection must also see children as workers, not just users, and close cross-border enforcement gaps.”

5) Biometric SIM ↔ ID — Why It Matters

“Linking SIMs to biometrics makes everyday communications identity-addressable. In weak rule-of-law contexts, that enables tracing, association mapping, and outing. It also excludes those with mismatched IDs—like trans youth—or minors below SIM age thresholds. And once biometrics are captured, function-creep is real: policing, borders, even social services. We argue for a human rights-based approach grounded in the best interests of the child, that incorporates proportionality testing, targeted exemptions, redress, and independent oversight, non-discrimination on the basis of sexual orientation and gender identity and expression, as minimum conditions.”

6) SOGI/LGBT+ Legal Status — Implications for Children

“The adoption of AI and laws to regulate should be informed by broader human rights principles. For example, the guiding principles of the Continental AI Strategy calls for the production, development, use and assessment of AI to be inclusive and not discriminate against anyone on the basis of sex, gender, race, ethnic origin, pregnancy status, economic status, age, any form of disability, language, religion, political opinion, or any other ground as contemplated under the regional and international human rights canons. Where non-discrimination and privacy rights for LGBTQ+ individuals are supported and recognized, schools and health systems are empowered to protect children in accordance with the best interests of the child principle, such as including anti-bullying, affirming care, confidential reporting in policies and curricula. Where it’s criminalized or censored, help-seeking is limited, educators are silenced or complicit, and online spaces become especially dangerous to more vulnerable children, bringing about the harms purported to be combatted through digital harms legislation aimed at children. Identity documents are another key tool to protect children while also being a source of potential targeting and identification of LGBTQ+ identifying children: without child-friendly ID rules, a teen can’t sit exams or travel safely; however, in practice, minors’ data protections often look stronger on paper than SOGI protections—creating paradoxes and significant exposure to legal and physical risks.”

7) GDPR & GDPR-Inspired Diffusion

“The GDPR set global baselines: rights, DPIAs, independent DPAs, and transfer controls. Its ‘Brussels Effect’ means many countries adopt look-alike laws—Brazil’s LGPD, Kenya’s DPA, Mauritius’ DPA, South Africa’s POPIA. But copying text isn’t the same as enforcing rights. We emphasize building institutional capacity and child-specific rules so that data protection works for real children, not just on paper. In weak and resource limited institutions, imported laws become symbolic—dead letter, or selectively enforced. Our matrix maps language concentration against types of fragility—weak legal foundations, institutional weakness, rapid innovation pressure, and sector fragmentation—to predict where legislation protecting rights fails to actually deliver such protections.”

8) Global Patterns & AU Landscape

“Globally, the EU, China, and the US drive binding obligations; hybrids like Canada, Japan, Brazil, and the UAE are next. Across the African Union, strategies are common but binding, corporate-level AI laws are rare. A handful of EU GDPR-style data laws exist—but enforcement and inclusion vary, with the corresponding deleterious effect this has on the protection of privacy rights and against harms for children. Accordingly, we compare outcomes and normative frameworks rather than superficial trends, noting that the same digital harm or data protection law can, protect, exclude, and/or target certain individuals and groups of persons, depending on institutional biases, and socio-cultural values.”

9) AU ‘Warning’ Countries (Enforcement risk + SOGI hostility)

“Countries such as Uganda, Ghana, Senegal, Rwanda, Republic of the Congo, that have adopted digital data laws, are also jurisdictions with significant human rights violations on the basis of sexual orientation, and increasingly with respect to non-heteronormative gender identity and expressions. In those contexts, digital privacy laws can be repurposed for surveillance or selective enforcement to the detriment of LGBTQ+ individuals, including children. We flag these as warning cases, noting the perceived mismatch between policy symbolism and lived protections. In our paper we consider potential solutions to the targeting of LGBTQ+ children, including ensuring the independence of regulators, child-specific safeguards, and explicit SOGI protections that reach schools and services.”

10) Edge Cases — Are LGBTQ children “more protected” as children?

“In many countries, children’s data rules are clearer and better enforced than SOGI protections. That can make a queer teen appear ‘more protected’ as a child—but parental consent rules and restrictive laws can weaponize those same protections through outing. We show paradoxes—Kenya, Ghana, South Africa, and Uganda, — where childhood can be both a shield and a risk. The design task is confidentiality by default for minors, especially around SOGI.”

11) SADC -> Example: Data Protection

“Here’s a snippet from a live country card. We pull treaty-body and national policy text into several lenses, and our working composite risk index is simple and transparent— we normalize and place countries into Low/Medium/High using global quantiles. It’s

directional—a triage tool to focus verification sprints, not a moral rating. The value is that every indicator is source-linked and easy to update as laws change. For example, we can look at data protection x state status and recover three tiers for moving forward:

Tier 1: High Leverage, Low-Cost Fixes - Public Awareness & Training, Basic Technical Safeguards, Minimal Disclosure Rules

Tier 2: Institutional but Achievable Steps - Semi-Independent Oversight Units, Child-Focused Privacy Standards, Donor/NGO Conditions

Tier 3: Structural / Hard Reforms (Longer-Term) - Independent DPA, Legal Reform, Integrated Digital Rights Strategy.”

12) Recommendations & Next Steps

“We’ll close by inviting collaboration on LRR validation and country cards – ongoing updates will be posted to GRIMdata.org/children + LittleRainbowRights.com - Our ask? help us validate source lines and dates and pick Tier-1 targets for the next six months.

Tier-1: address [No COP + biometricSIM], [CriminalizedLGBTQ + biometricSIM], and [CriminalizedLGBTQ + No COP] — these combos drive the greatest risk.

Tier-2: add SOGI as a special data category, adopt child-digital clauses, and pass or strengthen data-protection laws with real oversight.

Let’s also help build multilingual capacity so policies aren’t just copied and can adapt to institutions as they are, not as we wish they were.

Thank-You”
